SkillLink Nexus Ltd

MANAGED TECH DELIVERY

WEBSITE TERMS

Website Terms and Conditions

Governs use of www.skilllinknexus.com, quote requests and applications made through it.

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Welcome to www.skilllinknexus.com (the "**Website**"). These Terms and Conditions (the "**Terms**") apply to your use of the Website and to enquiries, quote requests and applications you make through it. By using the Website you agree to these Terms. If you do not agree, please do not use the Website.

1. Who we are

1.1 The Website is operated by **SkillLink Nexus Ltd**, a company incorporated in Kenya, registration number PVT-L51DLZB5, of P.O. Box 14634-00800, Nairobi, Kenya ("**SkillLink Nexus**", "**we**", "**us**").

1.2 Contact: hello@skilllinknexus.com | +254 20 200 9009. Legal notices: info@skilllinknexus.com. Privacy requests: privacy@skilllinknexus.com.

2. What we do

2.1 SkillLink Nexus is a managed technology company. We provide websites, landing pages, brand and logo design, social media content, short video, data and reports, mobile apps and custom software, cybersecurity services such as penetration testing, and executive assistant services. We deliver them through skilled and vetted contractors whom we select, manage and quality-check. You deal only with SkillLink Nexus.

2.2 We also run a skills training and internship programme. Details are on the Skills Programme page and are subject to the separate terms given when you enrol.

3. Information on the Website is not an offer

3.1 The Website describes our services and shows "from" prices for guidance. Nothing on it is a binding offer. A contract for services is formed only when you accept a written Quotation or Statement of Work from us, and it is then governed by our Client Terms of Service and Master Services Agreement, which we will send you before you accept.

3.2 If these Terms conflict with a signed Quotation, Statement of Work or Master Services Agreement, the signed document prevails.

4. Quotes, orders and payment

4.1 You may request a quote through the Website. We aim to respond with a written Quotation within 48 hours of receiving a complete project brief. Quotations are valid for the period they state.

4.2 Prices are fixed per project as stated in the Quotation, in Kenya Shillings (KES) unless we say otherwise.

4.3 **Pay only SkillLink Nexus Ltd.** All payments must be made to the official bank or M-Pesa account of SkillLink Nexus Ltd shown on our Quotation or invoice. We never ask clients to pay a contractor, an individual or a personal account. If anyone asks you to pay somewhere else in our name, do not pay, and contact us immediately at hello@skilllinknexus.com.

4.4 Payments are held by SkillLink Nexus Ltd and used to pay the contractor after the work is completed and approved, as set out in the Master Services Agreement.

5. Using the Website

5.1 You may use the Website only for lawful purposes and in line with these Terms. You must not:

- **(a)** try to gain unauthorised access to the Website, our systems, servers or databases, or test, scan or probe them for vulnerabilities without our written authorisation;
- **(b)** introduce malware, bots or any code intended to damage or interfere with the Website;
- **(c)** copy, scrape or harvest content or personal data from the Website by automated means;
- **(d)** submit false, misleading or unlawful information, or impersonate any person or organisation; or
- **(e)** use the Website in a way that harms others, or that breaches any law, including the Computer Misuse and Cybercrimes Act, 2018 of Kenya.

5.2 We may suspend or restrict access to the Website, without notice, if we believe these Terms have been breached or to protect our systems and users.

5.3 If you find a security vulnerability on the Website, please report it responsibly to info@skilllinknexus.com and do not exploit or publish it.

6. Intellectual property

6.1 The Website and all its content, including text, graphics, logos, design, icons and software, belong to SkillLink Nexus Ltd or its licensors and are protected by copyright and other laws. The names and logos of our partners and supporters belong to those organisations and are used with their permission.

6.2 You may view the Website and print or download pages for your own personal, non-commercial use. You may not copy, modify, distribute, sell or exploit any content without our written permission.

7. What you send us

7.1 When you send us a project brief, message, file or application, you confirm that the information is accurate and that you have the right to share it. You keep your rights in your materials, and give us permission to use them to respond to you, prepare quotations and deliver any services you order.

7.2 Please do not send confidential or sensitive information through the contact forms until we have agreed on how to protect it. We can sign a Non-Disclosure Agreement on request. We handle personal data as described in our Privacy Policy.

8. Joining our network and programmes

8.1 Applying to join our contractor network, or to take part in the Skills Programme or an internship, does not guarantee acceptance, work or payment, and does not create an employment relationship. Accepted contractors, participants and interns sign a separate agreement with us.

9. Third-party links and services

9.1 The Website may link to websites and services run by others, such as partners and payment providers. We do not control them and are not responsible for their content, availability or policies.

10. Disclaimers

10.1 We work to keep the Website accurate and available, but it is provided "as is" and "as available". To the fullest extent permitted by law, we do not guarantee that the Website will be uninterrupted, secure or error-free, or that its content is complete or up to date.

10.2 Nothing on the Website is legal, financial, tax or professional advice.

11. Limitation of liability

11.1 Nothing in these Terms limits liability that cannot be limited by law, including for fraud or for death or personal injury caused by negligence.

11.2 Subject to clause 11.1, we are not liable for any indirect or consequential loss, loss of profit, revenue or data, or for any loss caused by your use of or inability to use the Website, or by reliance on its content. Liability for services is governed by your signed Master Services Agreement.

12. Privacy and cookies

12.1 Our Privacy Policy explains how we collect and use personal data and cookies on the Website and describes your rights under the Data Protection Act, 2019 of Kenya. By using the Website you acknowledge that policy.

13. Changes to these Terms or the Website

13.1 We may update these Terms or change the Website at any time. The updated Terms apply from the date shown at the top. Your continued use of the Website after that date means you accept them. For significant changes, we will make a notice on the Website.

14. Governing law and disputes

14.1 These Terms are governed by the laws of Kenya. The parties shall first try to resolve any dispute through good-faith discussions. Any dispute not settled this way is subject to the exclusive jurisdiction of the courts of Kenya, except where a signed agreement between us provides for arbitration.

15. General

15.1 If any part of these Terms is found invalid or unenforceable, the rest remains in effect. Our failure to enforce a right is not a waiver of it. These Terms, together with our Privacy Policy and any signed agreement, are the whole agreement between us about your use of the Website.

16. Contact us

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